

MASTER FOOD SUPPLY & COLD CHAIN LOGISTICS AGREEMENT

Contract Ref: CTR-SYSCO-PCF-2026-002

Effective Date: June 1, 2026

Supplier: Premium Cold Foods, Inc.

Client / Buyer: Sysco Corporation

CONFIDENTIAL LEGAL INSTRUMENT

This supply agreement governs the wholesale supply, temperature-sensitive logistics, compliance criteria, pricing structures, and SLA thresholds between Premium Cold Foods, Inc. and Sysco Corporation.

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Section 1: Parties, Purpose & Recitals

This Master Food Supply and Cold Chain Logistics Agreement ('Agreement') is made and entered into on this 1st day of June, 2026, by and between:

Premium Cold Foods, Inc., a corporation organized under the laws of the State of Delaware, with its principal business office at 100 Harvest Way, Wilmington, DE 19801 (hereinafter referred to as 'Supplier'), and

Sysco Corporation, a corporation organized under the laws of the State of Delaware, with its global headquarters at 1390 Enclave Parkway, Houston, TX 77077 (hereinafter referred to as 'Client' or 'Sysco').

WHEREAS, Supplier specializes in the production, wholesale packaging, storage, and transport of organic produce and premium frozen food products; and WHEREAS, Sysco is the world's largest food-away-from-home distributor and requires a reliable supply of fresh and frozen items for its distribution network.

Section 2: Scope of Supply & Wholesale Delivery

Supplier shall supply, sell, and deliver fresh produce and frozen food products to Sysco's regional distribution centers as specified in periodic Purchase Orders issued by Sysco.

The scope includes wholesale produce shipping, high-capacity cold storage, mixed-pallet ordering, and active refrigerated transportation. All deliveries must match specified quantities, packaging standards, and shelf-life parameters.

Section 3: Quality Standards & Cold Chain Integrity

All products supplied under this Agreement must be shipped utilizing refrigerated transport that complies with strict FDA Sanitary Transportation rules.

Fresh produce boxes must be kept at a temperature range of +34°F to +38°F. Frozen products must be maintained at 0°F or lower throughout the entire logistics chain.

Section 4: Standard Pricing Rates & Case Tariffs

The standard rates for products delivered under this Agreement are determined on a unit-case basis. Rates are set for the initial year of the contract.

Section 4.2: Standard Produce Boxes delivered to Sysco hubs shall be billed at a flat rate of USD 4.50 per box.

Section 4.3: Standard Frozen Food cases delivered under this Agreement shall be billed at USD 5.80 per case.

Section 5: Volume-Based Discounts & Rebate Structures

To incentivize high-volume distribution, the parties agree to a monthly volume rebate mechanism applied directly to the billing cycle.

Section 5.1: If the monthly volume of Frozen Food cases shipped to Sysco hubs exceeds 10,000 cases in any calendar month, a discounted rate of USD 5.00 per case shall apply to all Frozen Food cases billed in that month.

Section 6: Logistics Surcharges & Fuel Ceiling Caps

Supplier may apply logistics surcharges and fuel cost adjustments. Surcharges must be validated and are capped on a monthly basis.

Section 6.2: Fuel surcharges applied to any monthly invoice shall not exceed USD 2,000.00. Under no circumstances shall Sysco be billed a fuel surcharge higher than USD 2,000.00.

Section 7: SLA Temperature Compliance Metrics & Penalty Credits

Operational SLA performance is critical to maintaining food safety and fresh shelf life. Compliance is evaluated over monthly periods.

Section 7.1: The Supplier guarantees that the temperature compliance rate for all shipments in a calendar month shall be at least 98.0%. If the monthly temperature compliance rate falls below 98.0%, the Supplier shall issue a credit penalty equal to 8.0% of that month's total invoice amount.

Section 8: Integration Milestones and Delay Liquidated Damages

Supplier must execute logistics integrations to align with Sysco's tracking infrastructure. Delays in integration trigger milestone liquidated damages.

Section 8.2: If the logistics integration milestone designated 'Mid-West Cold Chain Integration' is delayed beyond the target date of November 1, 2026, the Supplier shall credit the Client a delay penalty of USD 1,500.00 per calendar day of delay.

Section 9: Early Settlement Terms and Prompt Payment Incentives

The standard payment term is Net-30 days from invoice date. Sysco is entitled to discounts for prompt payment settlements.

Section 9.2: A prompt payment discount of 3.0% shall apply to Standard Produce Box charges if settled within 12 days of the invoice date.

Section 10: Product Inspection, Rejection & Claims Procedure

Sysco shall have the right to inspect all shipments at the time of delivery. Any damaged, spoiled, or off-temperature products may be rejected on the spot.

Supplier must issue full credits for any rejected items within five (5) business days. Claims for latent defects must be filed within ten (10) business days of delivery.

Section 11: Warranties, Recalls & Liability Indemnity

Supplier warrants that all products supplied are pure, unadulterated, and packaged in compliance with USDA organic guidelines.

In the event of a product recall, Supplier shall bear all recall costs, including logistics, product destruction, notification costs, and fines.

Section 12: Force Majeure and Business Continuity Standards

Supplier must maintain a comprehensive disaster recovery and business continuity plan to ensure continuity of supply to Sysco hubs.

Force majeure events include acts of God, war, labor disputes, and crop failures. The affected party must notify the other within forty-eight (48) hours.

Section 13: Regulatory Compliance and Food Safety Certifications

Supplier warrants compliance with the FDA Food Safety Modernization Act (FSMA) and must maintain third-party GFSI audit certifications.

Supplier shall grant Sysco or its designated auditor access to check facilities, logging records, and cold chain custody logs upon request.

Section 14: Governing Law, Arbitration Venue & Jurisdiction

This Agreement shall be governed by, and construed in accordance with, the laws of the State of Delaware, without regard to conflict of law principles.

Any controversy or claim arising out of this Agreement shall be settled by binding arbitration in Wilmington, Delaware, under AAA commercial rules.

Section 15: Confidentiality, Non-Disclosure & Data Security

Supplier shall protect all Sysco pricing data, proprietary distribution schedules, and supplier-client details as Confidential Information.

Confidentiality obligations shall survive termination or expiration of this Agreement for a period of seven (7) years.

Section 16: Miscellaneous Covenants and Signatures

This Agreement constitutes the entire contract between the parties. It supersedes all prior agreements, oral or written, and cannot be modified except in writing signed by authorized officers of both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement by their authorized officers.